

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JILL MARI KIMBROUGH,

Petitioner

VS.

JASON RICHARD KIMBROUGH,

Respondent

) Case Number: FDI-24-800544

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JERILYN BORACK

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS, SEE ATTACHMENT 7

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Jill Mari Kimbrough and Respondent Jason Richard Kimbrough. They share three adult children, one of whom is a dependent adult daughter named Millie.
- 2) On 11/12/24, Petitioner filed a Petition for Legal Separation of Marriage indicating the date of marriage is 8/7/93 and date of separation is 10/10/24 for a marriage of 31 years and 2 months.
- 3) On 9/5/25, Respondent filed a Response and Request for Dissolution of Marriage also indicating the date of marriage is 8/7/93 and date of separation is 10/10/24 for a marriage of 31 years and 2 months.
- 4) On 3/25/26, Petitioner filed an ex parte Request for Order (and supportive declaration file dated 3/20/26) seeking: (a) guideline temporary spousal support; (b) \$25,000 in attorney's fees and costs; (c) orders related to the medical care and medical insurance of the parties' daughter, Millie; (d) an advancement of funds for household cost and living expenses; (e) an order requiring

Respondent to deposit his income into the parties' joint account; (f) an order mandating Respondent make a retirement plan contribution; and (g) permission to file 2025 taxes as married filing separately and claiming 3 dependents.

- 5) Respondent filed a Responsive Declaration in opposition to Petitioner's ex parte Request for Order (file dated 3/23/26). Respondent requests the Court deny Petitioner's requests and asserts that Petitioner has access to funds through Millie's Special Needs Trust, which covers Millie's medical care and household costs and living expenses. Respondent states that Petitioner resides in the family home and the mortgage is paid in full. Respondent further asserts that he needs to propound additional discovery to access financial information including information regarding the Special Needs Trust. Respondent claims he does not have the ability pay Petitioner's attorney's fees and proposes the parties' take a \$100,000 HELOC on the family home as a \$50,000 advancement of funds for each party.
- 6) On 3/25/26, the Court denied Petitioner's request for emergency relief and set the matter for regular hearing on 5/28/26.
- 7) On 4/14/26, Respondent filed a Supplemental Declaration. Respondent states the parties are engaged in discovery. Respondent requests the Court reserve jurisdiction over spousal support retroactively so the parties can provide additional evidence on their respective incomes. Respondent reiterates that he does not have funds available to pay Petitioner's attorney's fees and states that Petitioner has improperly moved funds to restrict Respondent's access.
- 8) On 4/14/26, Respondent filed an Income and Expense Declaration.
- 9) On 4/16/26, Respondent filed a Statement of Support Calculations.
- 10) On 5/20/26, Petitioner filed a Reply Declaration reiterating her requests. Petitioner asserts that the funds she receives from the Special Needs Trust are not income but are funds used for Millie's care, including caregivers, training, medical supplies, and care-related expenses. Petitioner does not agree to take a HELOC on the family home. Petitioner claims Respondent has improperly withdrawn and restricted her access to community funds. Petitioner states that the immediate issue related to Millie's medical insurance was resolved.
- 11) On 5/20/26, Petitioner filed a Statement of Support Calculations.

B. Findings and Order

- 1) The Court finds there are material facts in dispute, which require a long-cause hearing on Petitioner's 3/25/26 ex parte Request for Order. A long-cause hearing will allow adequate time for the Court to consider all evidence on the parties' respective incomes and other sources of funding as the Court understands the parties are currently engaged in active discovery.
- 2) However, the Court finds good cause to issue an interim temporary monthly spousal support order. The Court does not consider the \$19,000 Petitioner receives from Millie's Special Needs Trust as income; therefore, the Court further finds good cause to adopt Petitioner's Statement of Support Calculations, attached hereto and incorporated herein, effective 6/1/26. This order is subject to retroactive modification dated back to 3/25/26.
- 3) The Court is not inclined to make an attorney's fee award at this time unless the parties can agree on an advancement of funds. The Court reserves jurisdiction over Petitioner's request for \$25,000 in attorney's fees and costs.
- 4) The Court is willing to consider appointment of a neutral third-party forensic accountment under Evidence Code section 730 with the parties to share the expense.
- 5) The Court understands that the requests related to Millie's medical care and the parties' 2025 taxes are moot.
- 6) **The parties are ordered to appear** to set the matter for a long cause hearing. The parties shall be prepared to: (a) discuss their time estimate for trial (i.e., number of days); and (b) inform the Court of the proposed number of witnesses they intend to present.